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350 CAMINO DE LA REINA, SUITE 100
SAN DIEGO, CA 92108
Telephone: (866) 300-8750
Facsimile: (858) 309-1588
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CA Debt Collector License Number Pending
Attorneys for Plaintiff

Electronically FILED by
Superior Court of California,
County of Los Angeles
1/10/2024 10:53 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By A. Rodriguez, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT

MIDLAND CREDIT MANAGEMENT, INC.

Case No. **24CHLC00955**

Plaintiff,

COMPLAINT FOR:

vs.

(1) Account Stated

JOSE ZELAYA;
and DOES 1 through 10, inclusive
Defendant.

PRAYER AMT: \$8,039.35
LIMITED

MIDLAND CREDIT MANAGEMENT, INC., ("Plaintiff"), by counsel, sues JOSE ZELAYA, ("Defendant")
under Account Stated and in support thereof states:

1. Plaintiff is authorized to do business in CALIFORNIA, with its principal place of business at 350 CAMINO DE LA REINA SUITE 100 SAN DIEGO CA 92108. Plaintiff owns portfolios of consumer receivables, which it attempts to collect. Plaintiff strives to treat its consumers, such as Defendant, with respect, compassion and integrity, hoping to provide mutually-beneficial opportunities for consumers to repay their debts and attain financial recovery.
2. Defendant is a resident of LOS ANGELES County, State of California and is subject to this Court's jurisdiction.
3. Plaintiff is unaware of the true names and capacities of Defendants sued by the fictitious names DOES 1 through 10. Plaintiff will ask leave of court to amend this complaint as and when the true names and capacities of Defendants named herein as DOES 1 through 10 have been ascertained.
Pursuant to California Civil Code ("CA CIVIL") §1788.58(a)(1)-(9), Plaintiff alleges:
4. Plaintiff is a debt buyer as defined by CA CIVIL §1788.50(a).

- 1 5. Defendant established a credit account (the "Account") with COMENITY CAPITAL
2 BANK. The amount due is the result of transactions that occurred on the Account.
3 Defendant was provided statements evidencing Defendant's use of the Account and the
4 balance due. Defendant failed to make the required payments and subsequently
5 defaulted on the Account on August 14, 2022. Thereafter, Plaintiff was assigned all
6 rights, title, and interest in the Account.
- 7 6. Plaintiff is the sole owner of the debt. Attached as Exhibit A is a true and correct copy of
8 the Bill of Sale from COMENITY CAPITAL BANK, to Plaintiff. The Account was
9 purchased by Plaintiff on February 22, 2023.
- 10 7. The Account balance at the time of charge-off was \$8,039.35. Plaintiff alleges that the
11 date of default is August 14, 2022 and the date of the last payment was June 18, 2022.
- 12 8. The name of the charge-off creditor at the time of charge-off is COMENITY CAPITAL
13 BANK. The address utilized by COMENITY CAPITAL BANK at the time of charge-off
14 was 2795 E. COTTONWOOD PARKWAY SUITE 100 SALT LAKE CITY, UT 84121.
15 At the time of charge off, the account number associated with the debt was
16 XXXXXXXXXXXX-XX-9338.
- 17 9. The name of the debtor as it appeared in the records of COMENITY CAPITAL BANK is
18 JOSE ZELAYA and the last known address as it appeared in the records of COMENITY
19 CAPITAL BANK is 1615 W COURT ST APT 6 LOS ANGELES CA 90026.
- 20 10. The name and address of all post charge-off purchasers of the debt are as follows:
- | Name | Address |
|------------------------------------|--|
| MIDLAND CREDIT MANAGEMENT,
INC. | 350 CAMINO DE LA REINA SUITE 100 SAN
DIEGO CA 92108 |
- 21 11. Plaintiff has complied with the provisions of CA CIVIL §1788.52. Plaintiff informed
22 Defendant of the assignment of the Account.
- 23 12. Pursuant to CA CIVIL §1788.58(b), attached as Exhibit B is a true and correct copy of a
24 monthly statement recording a purchase transaction, payment, or balance transfer while
25 the Account was active as required by CA CIVIL §1788.52(b).
- 26 13. Attached as Exhibit C is a true and correct copy of a billing statement that was mailed to
27 Defendant stating the balance due on the Account at or around the time of charge-off.
28

- 1 14. Plaintiff acquired all right, title, and interest to the Account. To the extent that Plaintiff
2 acts in its capacity as successor-in-interest to the original creditor or its assigns,
3 references herein to Plaintiff may include Plaintiff's predecessor-in-interest.
- 4 15. Plaintiff has attempted to contact Defendant through several means in an effort to resolve
5 the Account, but has been unsuccessful. Defendant has not repaid this debt. Plaintiff
6 works with consumers like Defendant to find mutually acceptable solutions, often
7 offering discounts, hardship plans, and a variety of payment options. The majority of
8 Plaintiff's consumers ignore calls or letters, and some simply refuse to repay their
9 obligations. When this happens, Plaintiff must decide whether to pursue collection
10 through legal channels, including litigation such as the present action against Defendant.
11 Nonetheless, Plaintiff remains interested in discovering a mutually beneficial solution
12 through voluntary payments, if possible, in this case.
- 13 16. Before commencement of this action, Plaintiff informed Defendant in writing, that it
14 intended to file this action and that this action could result in a judgment against
15 Defendant that would include court costs allowed by California Code of Civil Procedure
16 § 1033(b)(2).

17 **FIRST CAUSE OF ACTION**

18 **ACCOUNT STATED**

- 19 17. Plaintiff realleges and incorporates by reference the foregoing paragraphs.
- 20 18. An account was stated in writing between Defendant and COMENITY CAPITAL
21 BANK. Defendant opened and derived benefit from the Account. By using the Account,
22 Defendant expressly or impliedly promised to repay COMENITY CAPITAL BANK.
23 Within the last four years, Defendant became indebted on the Account.
- 24 19. On the Account, a balance of \$8,039.35 was stated to be due to COMENITY CAPITAL
25 BANK from Defendant. Plaintiff has no record of Defendant objecting to the balance
26 due.
- 27 20. Before the commencement of this action, Plaintiff was assigned the Account and
28 indebtedness. Plaintiff is now the sole owner of the Account.
21. Plaintiff has made a demand on Defendant for repayment of the Account, but Defendant
has failed to pay the balance due.
22. The current balance presently due and owing is \$8,039.35 which includes payments, set-
offs, credits or allowances, if any, at or after charge-off.

1
2 **WHEREFORE**, Plaintiff requests judgment against Defendant for \$8,039.35, costs of this action
3 and post judgment interest at the statutory rate. Plaintiff waives any claim for pre- judgment interest and
4 attorney's fees.
5

6
7 Dated: January 04, 2024

MIDLAND CREDIT MANAGEMENT, INC.

8
9 

H. Julia Jung, Esq.

10 By:

11 ☐ ROBERT K. HANNA / ☐ JUNQIAO XIAO
12 ☐ MICHAEL D. KAHN / ☒ HYU JIN JULIA JUNG
13 ☐ LAMONT FREEMAN
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EXHIBIT A

BILL OF SALE

Comenity Capital Bank ("Seller"), for value received and pursuant to the terms and conditions of that certain Credit Card Account Purchase Agreement dated October 25, 2019 between Seller and Midland Credit Management, Inc. ("Purchaser"), its successors and assigns ("Credit Card Account Purchase Agreement"), hereby assigns effective as of the Closing Date of February 22, 2023 all rights, title and interest of Seller in and to those certain Accounts described in the Credit Card Account Purchase Agreement and Schedule 1 (the "Asset Schedule") attached hereto and made part hereof for all purposes, to Purchaser.

The information contained in the Sale File (collectively, "Seller's Accounts Information") is true and complete as of the File Creation Date. Further, all of the information contained in Seller's Accounts Information (a) constitutes Seller's own business records regarding the Accounts and (b) accurately reflects in all material respects the information about the Accounts in Seller's possession. All of Seller's Accounts Information has been kept in the regular course of Seller's business, and was made or compiled at or near the time of the event and recorded by (or from information transmitted by) a person (i) with knowledge of the data entered into and maintained in Seller's business records, or (ii) who caused the data to be entered into and maintained in Seller's business records. All capitalized terms used, but not defined, in this Bill of Sale shall have the meanings assigned to such term in the Credit Card Account Purchase Agreement.



This Bill of Sale is executed without recourse except as stated in the Credit Card Account Purchase Agreement to which this is an Exhibit. No other representation of or warranty of title or enforceability is expressed or implied.

COMENITY CAPITAL BANK

By: Bruce A. Hunter

Date: 3/21/2023

Title: Chief Credit Officer

Midland Credit Management, Inc.

By: Danille Wolfert

Date: 5/2/2023

Title: MVP, BUSINESS DEVELOPMENT

**SCHEDULE 1 TO BILL OF SALE
ASSET SCHEDULE**

The individual Accounts transferred pursuant to the Credit Card Account Purchase Agreement and Bill of Sale are described in the electronic file named MCMG_HF_FEB_2023_DPL_CCB.TXT;MCMG_HF_FEB_2023_LCS_CCB.TXT delivered by Comenity Capital Bank to Midland Credit Management, Inc. on February 16, 2023 and summarized in the table immediately below (the "Sale File").

# of Charged-off Accounts	Aggregate Unpaid Balance	Percent	File Creation Date
			2/15/2023

PORTFOLIO LEVEL AFFIDAVIT OF SALE BY ORIGINAL CREDITOR

State of Utah

§

County of Salt Lake

On 3/21/2023, Bruce A. Sweeten ("Affiant") being duly sworn, deposes and says:

1. I am over 18 and I am the Chief Credit Officer of Comenity Capital Bank ("Seller"). In that capacity and as part of my regular job duties, I have custody of certain business records of Seller, routinely review such business records, and am familiar with Seller's processes for the sale and assignment of accounts and business records, including those that are maintained in electronic form.
2. Seller owns certain accounts, and maintains and records information in the records as they relate to such accounts. I am authorized to make the statements and representations set forth in this affidavit on behalf of Seller. The statements set forth herein are true and correct to the best of my knowledge, information, and belief, based on either personal knowledge or review of the business records of the Seller. If called upon as a witness, I can testify competently to the facts contained herein.
3. My regular job duties include having knowledge of, and access to, business records relating to the Accounts (as defined below). These records are kept by Seller in the regular course of business, and it was in the regular course of business of Seller, for an employee or representative with personal knowledge of the act, event, condition, or opinion recorded to make memorandum or records or to transmit information thereof to be included in such memorandum or records; and that the records were made at or near the time of the act and/or event recorded or reasonably soon thereafter.
4. On or about 2/22/2023, Seller sold a pool of charged-off accounts (the "Accounts") by a Credit Card Account Purchase Agreement to Midland Credit Management, Inc. ("Buyer"). The original creditor at the time of charge-off was Comenity Capital Bank.
5. Pursuant to the sale, Seller sold, transferred, assigned, conveyed, granted, bargained, set over and delivered to Buyer and its successors and assigns, good and marketable title to the Accounts and any unpaid balance free and clear of any encumbrance, equity, lien, pledge, charge, claim or security interest. I am not aware of any errors in the Accounts.
6. In connection with the sale of the Accounts, electronic and other records were transferred to or otherwise made available to the Buyer (the "Transferred Records"). The Transferred Records have been kept in the regular course of Seller's business, and were made or compiled at or near the time of the event and recorded by (or from information transmitted by) a person (i) with knowledge of the data entered into and maintained in Seller's business records, or (ii) who caused the data to be entered into and maintained in Seller's business records. To the extent that the Transferred Records include records that were prepared by a third party, they are records that were incorporated into the records of Seller as a business record and the accuracy of such records are relied upon by Seller in the regular course of business.

7. I certify under penalty of perjury that the foregoing is true and correct.

FURTHER AFFIANT SAYETH NOT.

Signed this 21st day of March, 2023.

Bruce A. Sweeten

Bruce A. Sweeten (AFFIANT NAME)

Comenity Capital Bank

Subscribed and sworn to before me Jennifer Pardue, on this 21st (date) day of March, in the year 2023, by Bruce A. Sweeten, who proved on the basis of satisfactory evidence to be the person whose name is subscribed to in this document.

(Notary's Official Seal)

Jennifer Pardue
Notary Signature



CERTIFICATE OF CONFORMITY

STATE OF UTAH

COUNTY OF SALT LAKE

The undersigned does hereby certify that she/he is an attorney at law duly admitted to practice in the State of Utah and is a resident of Utah, County of Salt Lake, Utah; that she/he is a person duly qualified to make this certificate of conformity; that the foregoing acknowledgment by Bruce A. Sweeten named in the foregoing instrument taken before Jennifer Pardue a notary in the State of Utah duly conforms with the laws of the State of Utah, being the State in which it was taken; and when executed by Mr. Sweeten in the manner indicated will qualify as a valid and effective sworn statement in such state.

03/31/2023

Date

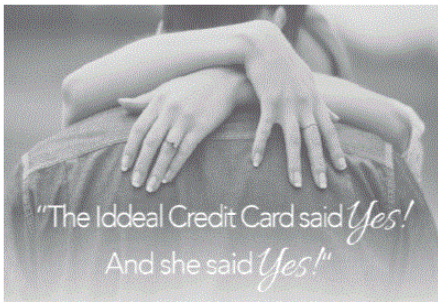


Attorney at Law for the State of Utah

Field	Field Data
Account Number	00[REDACTED]9338
Seller Account ID	1098138950
First Name	JOSE
Last Name	ZELAYA
SSN	XXX-XX-6413
Date of Birth	[REDACTED]
Address 1	1615 W COURT ST APT 6
City	LOS ANGELES
State	CA
Zip	90026
Open Date	11/30/2020
Last Purchase Date	11/20/2021
Last Purchase Amount	\$3,927.99
Last Payment Date	06/18/2022
Last Payment Amount	\$466.00
Sale Amount	\$8,039.35
Charge Off Date	01/31/2023
Charge off Balance	\$8,039.35
Post Charge Off Interest	\$0.00
Post Charge off Fee	\$0.00
Post Charge off Payments	\$0.00
Post Charge off Payments and Credits	\$0.00
Post Charge off Credits	\$0.00
Affinity	IDDEAL
Alternate Account #1	00[REDACTED]9338

Account information provided by Comenity Capital Bank pursuant to the Bill of Sale/Assignment of Accounts transferred on or about 02/22/2023 in connection with the sale of accounts from Comenity Capital Bank to Midland Credit Management, Inc.

MCMG_HF_FEB_2023_DPL_CCB.TXT;MCMG_HF_FEB_2023_LCS_CCB.TXT;



VISIT YOUR IDEAL CARD JEWELER TODAY!

PAGE 1 OF 4

Summary of account activity

Account no.	****-****-****-9338
Previous balance	\$7,222.40
Payments	-466.00
Other credits	0.00
Purchases	0.00
Other debits	0.00
Fees charged	0.00
Interest charged	\$3.47
New balance	\$6,819.87
Past due amount	0.00
Credit limit	\$7,600.00
Available credit	\$780.13
Statement closing date	06/20/2022
Days in billing cycle	27

Payment information

New balance	\$6,819.87
Minimum payment due	\$240.00
Payment due date	07/19/2022

Late payment warning:

If we do not receive your minimum payment by 07/19/2022 you may have to pay up to a \$40.00 late fee.

Minimum payment warning: If you make only the minimum payment for each period, you will pay more in interest and it will take you longer to pay off your balances. For example:

If you make no additional charges using this card and each month you pay:	You will pay off the balance shown on the statement in about:	And you will end up paying an estimated total of:
Only the minimum payment	20 years	\$24954
\$317	3 years	\$11420 (savings \$13535)

For information regarding credit counseling services, call 1-800-284-1706.

WARNING: Promotional Plan(s) ENDING SOON!

You must pay your Plan 412-00004 balance of \$640.77 in full by Sep 20, 2022 to avoid paying accrued interest charges. PLUS - If you have other purchases or promotional balances on your account, you also will need to pay your Minimum payment by the Payment due date shown on this statement.

You must pay the balance \$3,284.99 of your Plan 418-00001 in full by May 24, 2023 to avoid paying accrued interest charges.

Account Questions? Need to make a payment? Want to know how to go paperless? Visit comenity.net/IDDjewelry or call 1-855-408-1662 (TDD/TTY 1-888-819-1918).

If you returned an item that was on a promotional plan and have questions with how the return was applied to your account, please call us.

Skip signing in to pay and use Comenity's EasyPay. It's safe and convenient. Use your smartphone camera or code reader to scan the QR code printed on your payment stub below to get started.

Details of your transactions

TRANS DATE	TRANSACTION DESCRIPTION/LOCATION	AMOUNT
06/18/2022	PAYMENT - THANK YOU	-466.00

Fees

Total fees charged for this period	\$0.00
------------------------------------	--------

Interest charged

Interest charge on purchases	\$63.47
Total interest for this period	\$63.47

NOTICE: See reverse side for important information.
Please tear at perforation above



Account number	****-****-****-9338
New balance	\$6,819.87
Minimum payment	\$240.00

99 3

Mailed payments must reach us by 6pm ET on 07/19/2022.

☐ Yes, I have moved or updated my e-mail address - see reverse.

Amount enclosed:



Please make check payable to:
COMENITY - Iddeal Card

JOSE ZELAYA
1615 W COURT ST APT 6
LOS ANGELES CA 90026-5527

Please return this portion along with your payment to:
PO BOX 650965
DALLAS TX 75265-0965



43001017 00018715 9338 000024000 000681987

Credit card offers are subject to credit approval.
Ideal Credit Card Accounts are issued by Comenity Capital Bank.

Keep this portion for your records.

What To Do If You Think You Find A Mistake On Your Statement

If you think there is an error on your statement, write to us at: Comenity Capital Bank, PO Box 182620, Columbus, OH 43218 2620.

In your letter, give us the following information:

- **Account information:** Your name and account number.
- **Dollar amount:** The dollar amount of the suspected error.
- **Description of Problem:** If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake.

You must contact us with in 60 days after the error appeared on your statement. You must notify us of any potential errors *in writing*. You may call us, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question. While we investigate whether or not there has been an error, the following are true:

- We cannot try to collect the amount in question, or report you as delinquent on that amount.
- The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
- While you do not have to pay the amount in question, you are responsible for the remainder of your balance.
- We can apply any unpaid amount against your credit limit.

Your Rights If You Are Dissatisfied With Your Credit Card Purchases If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase. To use this right, all of the following must be true:

1. The purchase must have been made in your home state or within 100 miles of your current mailing address, and the purchase price must have been more than \$50. (Note: Neither of these is necessary if your purchase was based on an advertisement we mailed to you, or if we own the company that sold you the goods or services.)
2. You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify.
3. You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us *in writing* at: Comenity Capital Bank, PO Box 182620, Columbus, OH 43218-2620. While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

HOW TO AVOID PAYING INTEREST. Your due date is at least 25 days after the close of each billing cycle. We will not charge you interest on purchases if you pay your entire balance by the due date each month. We will begin to charge interest on new purchases made under a Low APR, Equal Payment or Budget Payment Credit Plan from the date of purchase.

BALANCE COMPUTATION METHOD. We calculate interest separately for each type of balance on your account using a "Daily Balance" to determine interest charges for each billing period. We figure the interest charge on your account by applying the periodic rate to the "daily balance" of your account for each day in the billing cycle. To get the "daily balance" we take the beginning balance of your account each day, add any new purchases and fees, and subtract any payments or credits (treating any net credit balance as a zero balance). This gives us the daily balance.

CREDIT REPORTING. We may report information about your account to credit bureaus. Late payments, missed payments, or other defaults on your account may be reflected in your credit report.

NOTICE OF CREDIT REPORT DISPUTES If you believe the account information we reported to a consumer reporting agency is inaccurate, you may submit a direct dispute to Comenity Capital Bank PO Box 182120 Columbus, OH 43218 2120. Your written dispute must provide sufficient information to identify the account and specify why the information is inaccurate:

- **Account Information:** Your name and account number
- **Contact Information:** Your address and telephone number
- **Disputed Information:** Identify the account information disputed and explain why you believe it is inaccurate
- **Supporting Documentation:** If available, provide a copy of the section of the credit report showing the account information you are disputing

We will investigate the disputed information and report the results to you within 30 days of receipt of the information needed for our investigation. If we find that the account information we reported is inaccurate, we will promptly provide the necessary correction to each consumer reporting agency to which we reported the information.

PAYMENTS MARKED "PAID IN FULL" All written communications regarding disputed amounts that include any check or other payment instrument marked with "payment in full" or similar language, must be sent to: 3000 Kellway Drive, Suite 120 Carrollton, TX 75006. DO NOT USE THE ENCLOSED RETURN LABEL. LNNLLOPL.

We may accept payment sent to any other address without losing any of our rights.

No payment shall operate as an accord and satisfaction without prior written approval.

CUSTOMER SERVICE. Visit comenity.net/1ddjewelry or call 1-800-408-1662 (TDD/TTY 1-888-819-1918).

TELEPHONE MONITORING. To provide you with high quality service, phone communication with us is monitored and/or recorded.

ADDITIONAL INFORMATION. The following designations, when appearing on the front of your statement, mean the following: V means variable rate (this rate may vary); WW INT PAY REQ means WAIVE INTEREST, PAYMENT REQUIRED; WW INT LOW PY means WAIVE INTEREST, EQUAL PAYMENT; WW INT LOW PMT means WAIVE INTEREST, LOW PAYMENT; DEF INT PY REQ means DEFER INTEREST, EQUAL PAYMENT; DEF INT LOW PY means DEFER INTEREST, LOW PAYMENT; and LOW APR LOW PAY means LOW APR, EQUAL PAYMENT. If you have a variable rate account, your periodic rates may vary. You may pay all of your Account balance at any time without penalty.

Send all inquiries to: CUSTOMER SERVICE, PO Box 183003, Columbus, OH 43218-3003.

Send all bankruptcy notices and related correspondence to Comenity Capital Bank, Bankruptcy Department, PO Box 183043, Columbus, OH 43218-3043.

NOTICE ABOUT ELECTRONIC CHECK CONVERSION. When you provide a check as payment, you authorize us either to use information from your check to make a one-time electronic fund transfer from your account or to process the payment as a check transaction. When we use information from your check to make an electronic fund transfer, funds may be withdrawn from your account as soon as the same day we receive your payment, and you will not receive your check back from your financial institution.

PAYMENTS. Pay your Account by the payment due date by the time listed below. If we do not receive your payment in a correct format (outlined below) it may not be credited to your Account for up to five days, or may be rejected. Also, your payment must reach us by the payment cutoff time that applies to the payment method you select.

Correct Format. Correct format for different payment methods include:

Mailing or Overnight: Send a personal check, money order, traveler's check or cashier's check payable in U.S. dollars, to the name and address shown on this Statement in the payment stub area containing your balance and minimum payment amount. Be sure to include your payment stub, do not staple or clip your payment to the stub, include your account number on your check, use the envelope provided with your Statement, send one payment with one payment stub and do not send any correspondence with your payment. You should overnight a payment to 3000 Kellway Drive, Suite 120 Carrollton, TX 75006 and the additional format requirements are the same as other mailed payments unless there is a dispute, in which case you follow the Payments Marked "Paid in Full" section above. Do not send cash or gift certificates. **Pay By Phone:** You can call us toll free at 1-800-408-1662 (TDD/TTY 1-888-819-1918) to make a payment by telephone, which may include a fee. **Online:** You can make a payment online at comenity.net/1ddjewelry.

Payment Cutoff Times. Payment cutoff times/deadlines for us to receive payments are by the due date on this Statement in the payment stub area at the following times: **Mailing and Overnight:** By 6:00 pm Eastern Time (ET); **Pay By Phone:** By 5:00 pm (ET); **Online:** By 5:00 pm (ET).

New Information

Title (optional) _____

First Name _____

MI _____

Last Name _____

Soc. Sec. No. _____

Street Address _____

Apt. No. _____

RR _____

PO Box _____

City _____

State _____

Zip Code _____

Foreign Map Code _____

Home Phone _____

Work Phone _____

Email Address _____

2022 totals year to date	
Total fees charged in 2022	\$29.00
Total interest charged in 2022	\$1,217.64

Interest charge calculation

Your Annual Percentage Rate (APR) is the annual interest rate on your account. See BALANCE COMPUTATION METHOD on page 2 for more details. Minimum interest charge may exceed interest charge below, per your credit card agreement.

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
Purchases	29.9900%	2,861.08	63.47
Plan 412-00004 DF INT PY RQ	29.9900%	814.30	0.00
Plan 418-00001 DF INT PY RQ	29.9900%	3,918.34	0.00

Details of your plans**001-00001** Purchases

ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
N/A	N/A	NONE	3,296.64	63.47	466.00	2,894.11	102.00	0.00

412-00004 You must pay your promotional balance of \$640.77 in full by 09/20/2022 to avoid paying accrued interest charges.

ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$825.77	09/19/2021	09/20/2022	640.77	0.00	0.00	640.77	23.00	182.93

418-00001 You must pay your promotional balance of \$3,284.99 in full by 05/24/2023 to avoid paying accrued interest charges.

ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$3,927.99	11/20/2021	05/24/2023	3,284.99	0.00	0.00	3,284.99	115.00	678.58

Additional important messages**IMPORTANT INFORMATION ABOUT LATE FEE CREDITS**

We may occasionally provide a credit for the amount, part or all, of a late fee charged to your account. If we do, we will charge a fee of up to \$40.00 for any subsequent late payment. In addition, we may reverse the credit and repost the charge to your account if you fail to make the minimum payment due on or before the due date in the next billing period.

GO PAPERLESS and manage your account online!

With paperless billing, you receive an email reminder prior to your payment due date. Get started today by visiting comenity.net/IDDjewelry

STEP 1: Sign in or register your account. **STEP 2:** Click Paperless account preference on the home page.

How can you take charge against ID Theft? Visit idtheft.gov to find out.

Summary of account activity

Account no. *****-9338

Previous balance	+ \$7,880.63
Payments	-0.00
Other credits	-0.00
Purchases	+0.00
Other debits	+0.00
Fees charged	+40.00
Interest charged	+118.72
New balance	+ \$8,039.35
Past due amount	\$1,805.00
Credit limit	\$7,450.00
Available credit	-\$589.00
Statement closing date	01/25/2023
Days in billing cycle	31

Payment information

New balance	\$8,039.35
Minimum payment due	\$2,087.00
Payment due date	02/19/2023

Minimum Payment Warning: If you make only the minimum payment for each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay:	You will pay off the balance shown on the statement in about:	And you will end up paying an estimated total of:
Only the minimum payment	21 years	\$27,268
\$403	3 years	\$14,514 (Savings = \$12,754)

For information regarding credit counseling services, call 1-800-284-1706.

YOU HAVE A PROMOTIONAL PLAN THAT HAS EXPIRED. \$985.96 MAY NOW BE ACCRUING INTEREST AT A HIGHER APR. PLEASE REFER TO THE DETAILS OF YOUR PLANS AND INTEREST CHARGE CALCULATION SECTIONS OF THIS STATEMENT FOR ADDITIONAL INFORMATION

YOU MUST PAY THE BALANCE \$3,284.99 OF YOUR PLAN 18 MNTH DF INT PY RQ IN FULL BY 05/24/23 TO AVOID PAYING ACCRUED INTEREST CHARGES.

If you returned an item that was on a promotional plan and have questions with how the return was applied to your account, please call us.

Details of your transactions

TRANS DATE	TRANSACTION DESCRIPTION/LOCATION	AMOUNT
Fees		
01/19/2023	LATE FEE	40.00
	TOTAL FEES FOR THIS PERIOD	\$40.00
Interest charged		
	Interest Charge on Purchases	\$118.72
	Total Interest For This Period	\$118.72

2023 totals year to date

Total fees charged in 2023	\$40.00
Total interest charged in 2023	\$118.72

Interest charge calculation

Your Annual Percentage Rate (APR) is the annual interest rate on your account. See BALANCE COMPUTATION METHOD on page 2 for more details. Minimum interest charge may exceed interest charge below, per your credit card agreement.

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
Purchases	29.99%	3,688.65 (DA)	93.94

(CONTINUED)

NOTICE: See reverse side for important information.

Please tear at perforation above



☐ Yes, I have moved or updated my e-mail address - see reverse.

Account number	*****-9338
New balance	\$8,039.35
Minimum payment	\$2,087.00

\$

Amount enclosed: Mailed payments must reach us by 6pm ET on 02/19/2023.

Please make check payable to:
COMENITY - IDEAL CARD

JOSE ZELAYA
1615 W COURT ST APT 6
LOS ANGELES CA 90026-5527

Please return this portion along with your payment to:
PO Box 650965
Dallas TX 75265-0965

Keep this portion for your records.

What To Do If You Think You Find A Mistake On Your Statement

If you think there is an error on your statement, write to us at: Comenity Capital Bank, PO Box 182620, Columbus, OH 43218-2620.

In your letter, give us the following information:

- **Account information:** Your name and account number.
- **Dollar amount:** The dollar amount of the suspected error.
- **Description of Problem:** If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake.

You must contact us within 60 days after the error appeared on your statement. You must notify us of any potential errors *in writing*. You may call us, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question.

While we investigate whether or not there has been an error, the following are true:

- We cannot try to collect the amount in question, or report you as delinquent on that amount.
- The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
- While you do not have to pay the amount in question, you are responsible for the remainder of your balance.
- We can apply any unpaid amount against your credit limit.

Your Rights If You Are Dissatisfied With Your Credit Card Purchases

If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase.

To use this right, all of the following must be true:

1. The purchase must have been made in your home state or within 100 miles of your current mailing address, and the purchase price must have been more than \$50. (*Note:* Neither of these is necessary if your purchase was based on an advertisement we mailed to you, or if we own the company that sold you the goods or services.)
2. You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify.
3. You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us *in writing* at: Comenity Capital Bank, PO Box 182620, Columbus, OH 43218-2620.

While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

CREDIT REPORTING. We may report information about your account to credit bureaus. Late payments, missed payments, or other defaults on your account may be reflected in your credit report.

NOTICE OF CREDIT REPORT DISPUTES

If you believe information we reported to a consumer reporting agency is inaccurate, notify us at Comenity Capital Bank, PO Box 182120, Columbus, OH 43218-2120. Please provide:

- Your name and account number
- Your address and telephone number
- What information you dispute and why you believe it is inaccurate
- If available, a copy of the section of the credit report showing the information you are disputing

Send all bankruptcy notices and related correspondence to Comenity Capital Bank, Bankruptcy Department, PO Box 183043, Columbus, OH 43218-3043.

PAYMENTS MARKED "PAID IN FULL". All written communications regarding disputed amounts that include any check or other payment instrument marked with "payment in full" or similar language, must be sent to: 3000 Kellway Drive, Suite 120, Carrollton, TX 75006.

DO NOT USE THE ENCLOSED REMITTANCE ENVELOPE.

- We may accept payment sent to any other address without losing any of our rights.

HOW TO AVOID PAYING INTEREST. Your due date is at least 25 days after the close of each billing cycle. We will not charge you interest on purchases if you pay your entire balance by the due date each month. We will begin to charge interest on new purchases made under a Low APR, Equal Payment or Budget Payment Credit Plan from the date of purchase.

BALANCE COMPUTATION METHOD. We calculate interest separately for each balance using the method(s) described below. The two letters in parentheses next to the Balance Subject to Interest Rate column in the Interest Charge Calculation section on this statement corresponds to the following:

(DA) We figure the interest charge on this balance by applying the periodic rate to the "daily balance" for each day in the billing period. To get the "daily balance" we take the beginning balance each day, add any new transactions and fees and subtract any payments or credits (treating any net credit balance as a zero balance). This gives us the daily balance.

CUSTOMER SERVICE. Visit COMENITY.NET/IDDJEWELRY or call 1-855-408-1662 (TDD/TTY 1-888-819-1918). **Send all inquiries to:**
CUSTOMER SERVICE, PO Box 183003, Columbus, OH 43218-3003.

TELEPHONE MONITORING. To provide you with high-quality service, phone communication with us is monitored and/or recorded.

ADDITIONAL INFORMATION. Abbreviations on your statement mean the following: (v) means variable rate (this rate may vary); WV INT PAY RQ means WAIVE INTEREST, PAYMENT REQUIRED; WV INT EQ PY means WAIVE INTEREST, EQUAL PAYMENT; WV INT LOW PMT means WAIVE INTEREST, LOW PAYMENT; DF INT PY RQ means DEFER INTEREST, PAYMENT REQUIRED; DEF INT EQ PY means DEFER INTEREST, EQUAL PAYMENT; DF INT LOW PMT means DEFER INTEREST, LOW PAYMENT and LOW APR EQ PAY means LOW APR, EQUAL PAYMENT. You may pay all of your Account balance at any time without penalty.

NOTICE ABOUT ELECTRONIC CHECK CONVERSION. When you provide a check as payment, you authorize us either to use information from your check to make a one-time electronic fund transfer from your account or to process the payment as a check transaction.

PAYMENTS. Payments in U.S. dollars received by the applicable due date and cutoff time will be credited as of the date received. Mailed or overnighted payments must also meet the requirements below. Otherwise, a payment may not be credited for up to five days or may be rejected.

Mailing or Overnight (cutoff time 6:00 p.m. Eastern Time (ET)):

- Send a personal check, money order, traveler's check or cashier's check to the name and address on the payment stub (regular mail) or 3000 Kellway Drive, Suite 120, Carrollton, TX 75006 (overnight).
- Include your payment stub, use the return envelope provided with your statement, write your account number on the check and send one payment with one payment stub.
- Do not staple or clip your payment to the stub, send any correspondence with your payment or send cash or gift certificates.

Pay By Phone (cutoff time 5:00 p.m. ET): Call us toll free at 1-855-408-1662(TDD/TTY 1-888-819-1918).

Online (cutoff time 5:00 p.m. ET): Visit COMENITY.NET/IDDJEWELRY.

New Information

Title (optional) _____ First Name _____ MI _____
Last Name _____ Soc. Sec. No. _____
Street Address _____
Apt. No. _____ RR _____ PO Box _____
City _____ State _____ Zip Code _____ Foreign Map Code _____
Home Phone _____ Work Phone _____
Email Address _____

Interest charge calculation - continued

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
12DS=R 2126201 12 MNTH DF INT PY RQ	29.99%	973.11 (DA)	24.78
18DS=R 2132401 18 MNTH DF INT PY RQ	29.99%	4,682.77 (DA)	0.00

Details of your plans

ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
N/A	N/A	NONE	3,634.46	40.00	0.00	3,768.40	2,087.00	93.94
12US-H-21252 01	This Promotion has ended. You will continue to see these details until the balance is paid in full. The balance is now included in your current balance and minimum payment due.							
ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$825.77	09/19/2021	09/20/2022	961.18	0.00	0.00	985.96	0.00	0.00
18DS-R-21324 01	You must pay your plan balance of \$3,284.99 in full by 05/24/2023 to avoid paying interest charges at the higher purchase APR noted above.							
ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$3,927.99	11/20/2021	05/24/2023	3,284.99	0.00	0.00	3,284.99	0.00	1,459.60

Additional important messages

Consumers are entitled to one free credit report per year. To request yours call 1-877-322-8228 or visit annualcreditreport.com

IMMEDIATE ATTENTION REQUIRED! Your Account is extremely past due and will be written off as a bad debt SOON. To avoid this, you must pay the Minimum payment amount shown on this statement at least 4 days prior to the end of the month in which this statement closed. You can find the Statement closing date in the Summary of account activity on page 1 of this statement. If you are not able to pay the Minimum payment amount, we may still be able to assist you. Call us immediately at 1-855-617-8089 (TDD/TTY 1-888-819-1918) to discuss your payment options. If written off, the bad debt will be reported to the three major credit bureaus and our Recovery team will determine the appropriate steps, as permitted and available under applicable law, to protect our interests.

IMPORTANT INFORMATION ABOUT LATE FEE CREDITS

We may occasionally provide a credit for the amount, part or all, of a late fee charged to your account. If we do, we will charge a fee of up to \$40.00 for any subsequent late payment. In addition, we may reverse the credit and repost the charge to your account if you fail to make the minimum payment due on or before the due date in the next billing period.

